Legislation 1: Consumer Contracts, Copyright and Computer Misuse

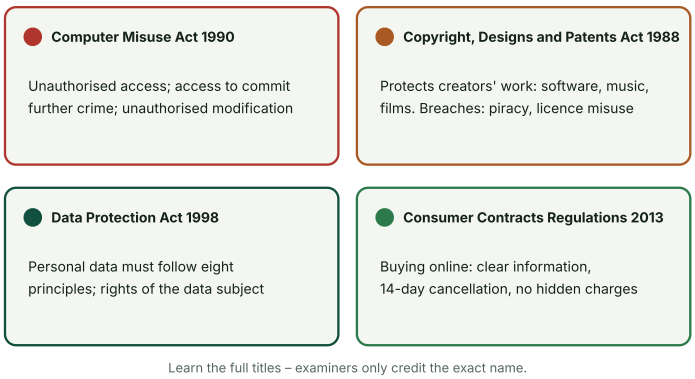
L21 FACT FILE

Specification: students should be able to

- Demonstrate knowledge and understanding of the Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013
- Demonstrate knowledge and understanding of the Copyright, Designs and Patents Act 1988
- Identify typical breaches of the Copyright, Designs and Patents Act 1988, including software piracy and software licensing infringements
- Demonstrate knowledge and understanding of the Computer Misuse Act 1990 and its offences
- Describe the terms hacker, virus and spyware and explain how they relate to the Computer Misuse Act 1990
- Apply knowledge of legislation to identify which law has been broken in a given scenario

CCEA fact file: Moral and Ethical

Key words: Consumer Contracts Regulations 2013, distance contract, cooling-off period, pre-ticked box, Copyright, Designs and Patents Act 1988, intellectual property, copyright, software licence, software piracy, plagiarism, Computer Misuse Act 1990, unauthorised access, hacker, malware, virus, spyware



Learn the full titles – examiners only credit the exact name.

Four laws examined in Unit 1 and what each covers

Laws that protect digital users

Digital technology lets us shop, create and communicate easily, but it also makes it easy to cheat customers, copy other people's work and break into computers. Three laws in this lesson deal with these problems. The Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 protect people who buy online, by phone or by mail order. They must be given clear information before paying, they get 14 days to change their mind about most goods, and they cannot be charged hidden extras. The Copyright, Designs and Patents Act 1988 protects intellectual property, such as software, music and images, so that only the owner can decide how it is copied or used. The Computer Misuse Act 1990 makes it a crime to access or change a computer system without permission. Together with data protection law, covered in the next lesson, these are the laws you need to name and apply.

Shopping at a distance

When you buy online you cannot see or handle the product, so the Consumer Contracts Regulations 2013 give you extra rights. Before you pay, the trader must give their identity and contact details, a description of the product, the full price including delivery, and how to cancel. Digital content must come with information about which devices it works with. For goods, the cooling-off period lasts 14 days from the day after delivery, and you do not need a reason to cancel. The refund must arrive within 14 days of the goods coming back or proof of posting. There are exceptions. You lose the right to cancel a download once it starts, as long as you agreed to that. Unsealed DVDs, games and software, and personalised items cannot be returned unless faulty. Pre-ticked boxes for extra payments are banned. Since 2025 the Digital Markets, Competition and Consumers Act 2024 has added further protection, such as banning fake reviews.

Copyright and software licences

Copyright protects original work automatically from the moment it is created. Under the Copyright, Designs and Patents Act 1988 a computer program is treated as a literary work, so its code cannot be copied without the owner's permission. When you 'buy' software you are really buying a licence: a legal agreement saying how many people or computers may use it and for what purpose. A school might buy a network licence for 30 machines or a site licence for the whole campus. Software piracy means illegally copying, downloading, sharing or selling software. Licence infringement includes installing software on more computers than allowed, sharing a licence key, using a student licence for business or carrying on after a subscription ends. Free software is not automatically free of copyright: freeware is still owned, while open-source licences allow the code to be changed and shared on stated terms. Breaches can lead to unlimited fines and, in serious cases, prison.

Computer misuse

The Computer Misuse Act 1990 was passed because, before it, hacking was hard to prosecute. It has since been updated. Section 1 makes unauthorised access to computer material an offence, even if nothing is changed. Section 2 covers unauthorised access with intent to commit a further crime, such as fraud or blackmail. Section 3 covers unauthorised acts that impair a computer, for example modifying or deleting data, spreading a virus, locking users out by changing their passwords, or launching a denial-of-service attack. Later additions cover acts that risk serious damage, for example to hospitals or power supplies (section 3ZA), and making or supplying hacking tools (section 3A). A hacker is someone who breaks into a system or its data without permission. A virus is malware that copies itself and damages files. Spyware secretly records a user's activity and sends it to someone else. Penalties rise with seriousness, from fines up to long prison sentences.

T Key terms from the mark schemes

Consumer Contracts Regulations 2013
The Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013: protect people who buy online, by phone or by mail order by requiring clear information, giving a 14-day right to cancel and banning hidden extra charges.
`Credited: Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013`

Cooling-off period
The 14 days in which a consumer can cancel a distance purchase without giving a reason and get a refund; for goods it starts the day after delivery.
`Credited: cancellation period`

Copyright, Designs and Patents Act 1988
Protects the intellectual property of creators, including software, music, images and text, so it cannot be copied, shared, sold or adapted without the owner's permission.
`Credited: CDPA 1988`

Intellectual property
Original creative work, such as software, music, designs or writing, which belongs to the person or organisation that created it.

Software licence
A legal agreement that states how a piece of software may be used, including how many users or computers may run it.

Software piracy
Illegally copying, downloading, distributing or selling software without the copyright owner's permission.
`Credited: illegal copying of software`

Computer Misuse Act 1990
Makes it a criminal offence to access computer material without permission, to do so in order to commit another crime, or to carry out unauthorised acts that impair a computer, such as changing or deleting data.

Unauthorised access
Getting into a computer system, account or data without permission; an offence under section 1 of the Computer Misuse Act 1990.
`Credited: hacking`

Hacker
Someone who gets into a computer system, or the data held on it, without permission.

Virus
Malicious software that attaches itself to files or programs and copies itself, often damaging or deleting data.
`Credited: malware`

Spyware
Malicious software that secretly records a user's activity, such as keystrokes, and sends it to a third party.
`Credited: keylogger`

Exam focus

Questions on these laws have appeared in most recent papers. In 2025 Q9(a) candidates had to give the full title of the consumer law, and the examiners noted that many could not name it precisely, so learn 'Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013'. Scenario questions ask you to match a situation to the law broken (2024 Q11(a), 2025 Q9(b)): name the Act and its year, then link it to the detail in the scenario. Copyright has come up in 2022 Q9 and 2023 Q10, where marks were given for naming the Act and describing a breach such as installing software without a licence. 2019 Q1(d) and 2021 Q10 also tested consumer law and computer misuse. For a 'describe' question, make one point and then add detail or an example for the second mark. Common mistakes are mixing up the Computer Misuse Act with data protection and writing 'copywrite'.

Unit 1 2025 Q9	[4]	Consumer law title; data, computer misuse and copyright scenarios
Unit 1 2024 Q11	[6]	Legislation matching, online harms, protection methods
Unit 1 2023 Q10	[5]	Copyright, DPA principles, DPO and data controller
Unit 1 2022 Q9	[8]	RSI, monitor ergonomics, copyright, ICO, DPA principles
Unit 1 2021 Q10(b)–(e)	[10]	Cybercrime, access rights, DPA principles, encryption, legislation

? Check yourself

1. Give the full title of the legislation that gives people buying goods online a 14-day period in which to cancel their order. [1]
2. Describe two rights given to consumers by the Consumer Contracts Regulations 2013. [4]
3. Ciara buys a game download from an online store and starts playing it. Two days later she asks for a refund. Explain why the store does not have to give her one. [2]

Answers: 1. The Consumer Contracts (Information, Cancellation and Additional Charges) Regulations 2013 (1). Accept 'Consumer Contracts Regulations 2013'; the year is needed. 2. Any two rights, each with description (2 + 2): right to clear information before buying (1) / e.g. trader identity, total price including delivery, how to cancel (1); right to cancel within 14 days (1) / without giving a reason, starting the day after delivery (1); right to a refund (1) / within 14 days of returning the goods, including standard delivery (1); protection from hidden or extra charges (1) / pre-ticked boxes banned, must opt in (1); helplines charged at no more than basic rate (1) / so customers are not overcharged for support (1). 3. Ciara agreed to lose her right to cancel when the download started (1) / digital content cannot be returned once downloading or streaming has begun, so the right to cancel no longer applies (1).